

Mahabir Jute Mills Ltd. v. Purvanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 21 March 2017 · WRIT - C No. 33464 of 2014 · **Writ dismissed following order in Writ-C No. 30898 of 2016.**

HEADNOTE

A jute mill challenged an undated additional-security demand said to rest on clause 4.20 of the U.P. Electricity Supply Code, 2005. After an interim restraint in 2014, the Chief Justice's Bench dismissed the writ, following the order of even date in Writ-C No. 30898 of 2016.

FACTUAL SUMMARY

M/s The Mahabir Jute Mills Ltd. sought quashing of an undated notice by Purvanchal Vidyut Vitran Nigam Ltd. demanding additional security, said to rest on para 4.20 of the U.P. Electricity Supply Code, 2005. It pointed to a 2009 writ in which similar demands had been stayed. On 1 July 2014 a Division Bench connected the matter with W.P.(C) No. 51884 of 2009 and restrained the respondents from demanding additional security until further orders. The writ was later dismissed on 21 March 2017.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ seeking quashing of an undated additional-security demand under clause 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed, the Court following the order of even date in Writ-C No. 30898 of 2016. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — INDEPENDENT CONSTRUCTION OF CLAUSE 4.20 ON ADDITIONAL SECURITY

This order dismisses the writ by following Writ-C No. 30898 of 2016 and does not itself construe clause 4.20. ¶ 2